

Form No.HCJD/C-121

ORDER SHEET

IN THE LAHORE HIGH COURT, LAHORE.

JUDICIAL DEPARTMENT

Crl. Misc. No.1006-B/2022.

Zeeshan Anjum. VS. The State, etc.

S.No. of order/ Proceedings	Date of order/ Proceedings	Order with signature of Judge, and that of parties of counsel, where necessary.

31.01.2022. Mr. Laeeq Hafeez Khan Barak Zai, Advocate with petitioner.
Mr. Nisar Ahmad Virk, Deputy Prosecutor General with Manzoor ASI.

Petitioner seeks pre-arrest bail in case FIR No.1413/2021 dated 12.10.2021 registered under Section 462-I PPC at Police Station Sargodha Road Faisalabad.

2. As per prosecution story, petitioner is under the charge of committing theft of electricity by using bogus meter.

3. Learned counsel for the petitioner states that in the light of section 462-O PPC, cognizance is to be taken on a complaint made by duly authorized officer (not below Grade 17) of the Government or the distribution company, therefore, registration of FIR is barred; he placed reliance on case reported as “PESCO thorough Executive Officer versus The STATE and 43 others” (2020 P Cr. L J 249 [Peshawar (D.I. Khan Bench)]).

4. On the other hand, learned DPG while placing reliance on the case reported as “Mian HAROON RIAZ LUCKY and another versus The STATE and others” (2021 SCMR 56) states that when the offence stands cognizable F.I.R. has rightly been registered.

5. I have heard the learned counsel for the petitioner as well as learned Deputy Prosecutor General at length and perused the record.

6. Ambiguity about taking cognizance of offences under Sections 462-H to 462-M of Pakistan Penal Code,1860

relating to theft of electricity is soaring the system which is required to be set at naught. A new Chapter XVII-B was inserted in Pakistan Penal Code, 1860 through “The Criminal Law (Amendment) Act, 2016” to deal with such offences and Schedule II of Code of Criminal Procedure, 1898 was also amended so as to make offences mentioned in the above Chapter as cognizable and non-bailable, which means that for cognizable offence, registration of FIR is permissible.

However, a conditional cognizance under section 462-O of PPC was introduced under this chapter in following words;

Cognizance. --(1) The Court shall try an offence punishable under this Chapter.

(2) Notwithstanding anything contained in the Code of Criminal Procedure, 1898 or any other law for the time being in force, the Court shall not take cognizance of an offence under this Chapter except on a complaint made, with reasons to be recorded in writing along with full particulars of the offence committed under this Chapter, by duly authorized officer (not below Grade 17) of the Government or the distribution company, as the case may be.”

7. Above conditional cognizance has produced a match between cognizance and cognizable offence or taking cognizance and registration of FIR. We know that both are different phenomena as held by Honourable Supreme Court in case reported as “Muhammad Nazir Versus Fazal Karim, etc.” (**2013 PSC Criminal 24**); therefore, FIR is not barred in these offences as being cognizable. Further reliance is on cases reported as “MUHAMMAD NAZIR Versus FAZAL KARIM and others” (**P L D 2012 Supreme Court 892**) “INDUSTRIAL DEVELOPMENT BANK OF PAKISTAN and others Versus Mian ASIM FAREED and others” (**2006 S C M R 483**).

8. Cognizance is a later stage in a criminal process when the court for the first time takes notice of an offence on a police report or on a complaint by a private person. Before

that criminal process is initiated u/s 154 Cr.P.C. for cognizable offences and 155 Cr.P.C. for non-cognizable offences, it has to pass through the stage of investigation, purpose whereof is collection of evidence which guides to prosecute or not to prosecute. In ordinary offences, court u/s 190 Cr.P.C. is authorized to take cognizance plainly on a police report or on a private complainant within in the contours of such section without attending any peculiar condition; but in certain situations, cognizance is restricted based on public policy in order to govern the cases with controlled prosecution. Section 195 to 199 of Cr.P.C. is the response of what has been stated above. Similarly, present Chapter XVII-B also gives a tinge of controlled prosecution so as to eliminate the interference by general public in initiation process.

9. So far as question of taking cognizance of offence by the court is concerned, the above section (462-O PPC) is when juxtaposed with section 195 of Cr.P.C., it transpires that under section 195 of Cr.P.C., court shall straight away take cognizance of offences on the complaint in writing of Public Servant/Court and no other restriction has been imposed like recording of reasons before taking cognizance.

An identical law known as Gas (Theft Control and Recovery) Act, 2016 also deals with question of taking cognizance differently and closer to provision of section 195 Cr.P.C. as regulated u/s 5(2) of said Act in following terms;

“Notwithstanding anything to the contrary in this Act, Gas Utility court shall not take cognizance of any offence punishable under the Act except upon a complaint made in writing by a person authorized in this behalf by the Gas Utility Company in respect of which offence was committed.

In said law, section 24 deals with the status of offences which says as under:-

“Notwithstanding anything contained in the code of criminal procedure (Act V of 1898). All offence under this Act if committed by any person other than a domestic consumer shall be cognizable and non-bailable.

While keeping in view above sections 5(2) & 24 of Gas (Theft Control and Recovery) Act, 2016, Honourable Supreme Court has declared that when offences are cognizable, registration of FIR is not barred. Reference is made to the case reported as “Mian HAROON RIAZ LUCKY and another versus The STATE and others” (2021 SCMR 56).

Under the New Chapter XVII-B in PPC, court is required to do the following;

- i. *Court shall take cognizance only on the complaint made by duly authorized officer (not below Grade 17) of the Government or the distribution company, as the case may be.*
- ii. *Court shall take cognizance only if the complaint shows recording of reasons in writing along with full particulars of offences committed under this chapter.*

The words “reasons to be recorded” are very valuable and meaningful because electricity theft is gauged through technical report which requires an expert opinion so as to facilitate the court to reach out direct to the essence of the offence and may not remain entangled about an exercise of applicability of offences for proper charging.

10. On the analogy of section 196 Cr.P.C where cognizance of certain offences is barred except on a complaint by Central or Provincial Governments or authorized officer, yet all the offences referred in section 196 Cr.P.C are not non-cognizable; e.g. Section 123-B in Chap-VI, Section-171-J in Chap-IX-A, Section 153-A & Section 505 are cognizable; therefore, FIR is registered in such sections; however, for taking cognizance, court requires complaint/sanction of Central or Provincial Government or authorized officer at the

time of framing charge or at the time of addition or alteration of charge as mentioned in section 230 of Cr.P.C., only if sanction/complaint has not already obtained or it has not been attached with report u/s 173 of Cr.P.C. Another instance is of section 7 of the Explosive Substances Act, 1908 which also requires sanction for prosecution to be obtained yet FIR is registered under such law for the cognizable offences and for prosecution, sanction is obtained later if case is found by the government to be fit to prosecute.

11. In the light of above discussion, it is held that registration of F.I.R. for offences under Chapter XVII-B, PPC is not barred, because all the offences have been shown as cognizable in Schedule II of Cr.P.C. However, later during the process, the requisite complaint is required to be filed with report under section 173 Cr.P.C. before the learned trial court. Prosecutors are expected to scrutinize such complaint and report under section 173 Cr.PC before forwarding it to the court concerned so as to make it conformable with the requirement of section 462-O PPC.

12. Reverting to the facts of this case, perusal of record shows that so far no detection bill has been issued against the petitioner. Police official, present in Court states that he has not taken into custody the relevant record whereby such reference of meter could be tracked in the record or otherwise. On the other hand, learned counsel for the petitioner has placed on record copy of application dated 04.10.2021 (the date of occurrence), stating therein that on 01.10.2021 his meter was disconnected and he requested for its restoration. From this fact, it transpires that on 04.10.2021 when FESCO Department raided, no meter was installed at the premises but later on 12.10.2021 this F.I.R. was registered. The offence charged with does not fall within the prohibitory clause. There is a shake in prosecution story,

therefore, a question of further inquiry arises and further in the light of above circumstances, involvement of the petitioner in this case with malafide intention of the complainant also cannot be ruled out. Therefore, while relying upon the case “KHAIR MUHAMMAD and another Versus THE STATE through P.G. Punjab and another” (2021 SCMR 130), wherein while granting pre-arrest bail the Hon’ble Supreme Court with reference to “Meeran Bux v. The State and another” (PLD 1989 SC 347) has held that “the scope of the pre-arrest bail has been widened and as such while granting pre-arrest bail even the merits of the case can be touched upon”, this petition is **allowed** and interim pre-arrest bail already granted to the petitioner is confirmed subject to furnishing fresh bail bond in the sum of Rs.1,00,000/-(one lac) with one surety in the like amount to the satisfaction of learned trial Court.

(MUHAMMAD AMJAD RAFIQ)
JUDGE

APPROVED FOR REPORTING.

Gulzar

JUDGE